

SOLVED PRACTICE WORKBOOK

Preamble of the Constitution - Solved Practice Workbook

Solved Practice Workbook

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

PRACTICE WORKBOOK

This section contains exactly **32 original MCQs** before the reproduced PYQ block. Correct answers rotate ABCD eight times. Each of the 128 options has a distinct substantive explanation, and every question has a question-specific examiner trap.

BASIC MCQS / REMEDIATION

Q1. Which description most accurately captures the Preamble?

A. An introductory constitutional declaration identifying authority, State character, objectives and adoption B. A schedule distributing legislative subjects between the Union and States C. A directly enforceable catalogue of individual rights D. A source of residual legislative power for Parliament

Answer: A.

- **A - Correct.** It states who gives the Constitution, what kind of State is constituted, which objectives are pursued and when the Constitution was adopted.
- **B - Incorrect.** Legislative subjects are distributed principally by Article 246 read with the Seventh Schedule, not by the Preamble.
- **C - Incorrect.** The Preamble guides the interpretation of rights but does not itself create a standalone enforceable right.
- **D - Incorrect.** Residuary legislative power is allocated by Article 248 and Entry 97 of the Union List, not by introductory language.

Examiner trap: The distractors turn an interpretive declaration into an operative schedule, right or competence clause.

Q2. Which sequence correctly states the Objectives Resolution chronology?

A. Adopted on 13 December 1946; moved on 22 January 1947 B. Moved on 13 December 1946; adopted on 22 January 1947 C. Moved and adopted on 26 November 1949 D. Adopted after the Constitution commenced on 26 January 1950

Answer: B.

- **A - Incorrect.** This reverses the motion and adoption dates.
- **B - Correct.** Jawaharlal Nehru moved it on 13 December 1946 and the Constituent Assembly adopted it on 22 January 1947.
- **C - Incorrect.** 26 November 1949 is the Constitution's adoption date recorded in the Preamble, not the Resolution's complete chronology.
- **D - Incorrect.** The Resolution guided drafting years before constitutional commencement.

Examiner trap: Chronology questions often exchange 'moved', 'adopted' and 'constitutional adoption'.

Q3. The relationship between the Objectives Resolution and the Preamble is best stated as:

A. The Preamble reproduces one foreign preamble verbatim B. The Resolution remains an enforceable constitutional article beside the Preamble C. The Preamble is the Resolution's modified constitutional form D. The Resolution was drafted after the Preamble to explain it

Answer: C.

- **A - Incorrect.** Comparative influences existed, but India's Preamble was not copied verbatim from one source.
- **B - Incorrect.** The Resolution is a historical constituent document, not a separate operative Article.
- **C - Correct.** Its commitments were refined through drafting and debate into the final enacting text.
- **D - Incorrect.** The Resolution preceded and guided constitution-making; it did not retrospectively explain an existing Preamble.

Examiner trap: Do not convert intellectual or textual influence into verbatim borrowing or independent legal force.

Q4. Which is the correct four-part architecture of the Preamble?

A. Rights, duties, schedules and emergency powers B. Union, States, local bodies and courts C. Legislature, executive, judiciary and Election Commission D. Source of authority, nature of State, objectives and adoption clause

Answer: D.

- **A - Incorrect.** These are constitutional subjects, not the Preamble's internal components.
- **B - Incorrect.** Territorial and institutional levels do not organise the wording of the Preamble.
- **C - Incorrect.** The separation of public institutions is not the clause structure of the enacting sentence.
- **D - Correct.** 'We, the People' supplies authority; five descriptors state identity; four objectives state ends; the final words record adoption.

Examiner trap: A list of important constitutional institutions is not automatically a classification of Preambular clauses.

Q5. What did the Preamble originally describe India as when the Constitution commenced?

A. A Sovereign Democratic Republic B. A Sovereign Socialist Democratic Republic C. A Sovereign Secular Democratic Republic D. A Sovereign Socialist Secular Democratic Republic

Answer: A.

- **A - Correct.** 'Socialist' and 'Secular' were absent from the original text and were inserted in 1976.
- **B - Incorrect.** This imports 'Socialist' but omits the simultaneously inserted 'Secular'.
- **C - Incorrect.** This imports 'Secular' into the 1950 wording while leaving out the other 1976 descriptor.
- **D - Incorrect.** This is the present description, not the wording at commencement.

Examiner trap: The word 'exact' usually signals a date-sensitive original-versus-current wording test.

Q6. Which statement best explains 'We, the People of India'?

A. It proves that the Constitution was approved by referendum B. It locates constituent authority in the people rather than an external grant C. It means every member of the Constituent Assembly was directly elected by universal franchise D. It makes Parliament legally sovereign over the Constitution

Answer: B.

- **A - Incorrect.** No constitutional referendum adopted the Indian Constitution.
- **B - Correct.** The self-giving phrase expresses popular sovereignty and autochthonous constitutional authority.
- **C - Incorrect.** The Assembly was indirectly elected on a restricted franchise, a process limitation that must be acknowledged.
- **D - Incorrect.** Parliament is constituted and limited by the Constitution; popular sovereignty does not create Westminster-style parliamentary sovereignty.

Examiner trap: Source of authority must not be confused with the historical method of selecting the drafting body.

Q7. Which statement about sovereignty is constitutionally sound?

A. Commonwealth membership places the British monarch above India's President B. UN membership makes the UN Charter superior to the Constitution in domestic law C. Voluntarily assumed international obligations do not by themselves extinguish Indian sovereignty D. A sovereign India can cede territory by executive declaration alone

Answer: C.

- **A - Incorrect.** The monarch is only the symbolic head of the free association; India's head of State is the President.
- **B - Incorrect.** International obligations may require domestic implementation, but they do not create an external sovereign above the Constitution.
- **C - Correct.** Sovereignty permits consent to legal commitments while preserving independent constitutional authority.
- **D - Incorrect.** The *Berubari* episode showed that cession requires the constitutionally prescribed legal route, not bare executive action.

Examiner trap: Sovereignty is compatible with obligation, but not with bypassing domestic constitutional form.

Q8. The constitutional implementation of territorial cession after the Berubari reference illustrates that:

A. Article 3 alone always authorises transfer to a foreign State B. State consent is independently sufficient C. A treaty automatically changes constitutional territory D. Sovereign capacity to cede territory remains subject to constitutional amendment requirements

Answer: D.

- **A - Incorrect.** Internal reorganisation under Article 3 and cession to a foreign State are distinct legal problems.
- **B - Incorrect.** A State legislature cannot by itself transfer Indian territory to another country.
- **C - Incorrect.** International agreement does not automatically rewrite the constitutional territory of India.
- **D - Correct.** Sovereignty supplies capacity, while the Ninth Amendment supplied the required domestic constitutional form.

Examiner trap: Do not infer that sovereign capacity eliminates procedural and amendment constraints.

Q9. Indian Preambular socialism is best understood as:

A. A democratic welfare commitment compatible with a mixed economy B. A command that all productive property must be State-owned C. A ban on private entrepreneurship D. A purely ceremonial word with no constitutional relevance after 1991

Answer: A.

- **A - Correct.** It fixes welfare and equality ends without constitutionalising one exclusive economic instrument.
- **B - Incorrect.** State socialism or total nationalisation is not mandated by the Preamble.
- **C - Incorrect.** *Dr Balram Singh* expressly rejected the claim that the word restricts private enterprise or dictates one model.
- **D - Incorrect.** Liberalisation changed policy emphasis, but the welfare and equality floor remains constitutionally relevant.

Examiner trap: The trap is to mistake a normative end for a compulsory ownership model.

Q10. Which constitutional cluster most directly operationalises the welfare and distributive content associated with 'Socialist'?

A. Articles 52-62 on the President B. Articles 38 and 39 in the Directive Principles C. Articles 324-329 on elections D. Articles 343-351 on language

Answer: B.

- **A - Incorrect.** These provisions organise republican headship rather than distributive policy.
- **B - Correct.** They direct a welfare-oriented social order and the distribution of material resources and economic power.
- **C - Incorrect.** Electoral provisions operationalise political democracy, not the principal socialist-welfare content.
- **D - Incorrect.** Official-language provisions do not create the distributive programme associated with socialism.

Examiner trap: Match the descriptor to its operative constitutional anchors instead of choosing any prominent Article cluster.

Q11. Which description of Indian secularism is the most accurate?

A. State hostility to every religious practice B. A constitutional preference for the majority religion C. Equal citizenship and freedom of conscience with rights-bound reform and regulation D. An absolute prohibition on every State interaction with religion

Answer: C.

- **A - Incorrect.** Secularism protects religious liberty; it is not official irreligion.
- **B - Incorrect.** Religious preference would contradict equality, non-discrimination and the absence of a State religion.
- **C - Correct.** Indian secularism combines Articles 14-16, 25-30 and reform power under Article 25(2).
- **D - Incorrect.** The Constitution permits regulation of secular activities and social reform, so the wall metaphor is incomplete.

Examiner trap: Both 'anti-religion' and 'total separation' are close-option distortions of the Indian model.

Q12. Which proposition is inconsistent with the Preamble-level meaning of secularism?

A. The State has no official religion B. Freedom of conscience is constitutionally protected C. Religious liberty operates with equality and public-order limits D. Secularism requires the State to abstain from all social reform touching religious practice

Answer: D.

- **A - Incorrect.** Incorrect as a choice because this proposition is consistent with Indian secularism.
- **B - Incorrect.** Incorrect as a choice because Articles 25-28 make freedom of conscience central to the secular settlement.
- **C - Incorrect.** Incorrect as a choice because religious freedom is expressly subject to constitutional limitations.
- **D - Correct.** Article 25(2) permits regulation of secular activity and social welfare and reform; secularism is not compulsory passivity.

Examiner trap: A 'NOT' stem reverses the task: three true propositions are distractors and the absolutist reform claim is the answer.

Q13. The word 'Democratic' in the Preamble is most completely reflected by:

A. Adult franchise, representative institutions and responsible parliamentary government B. Direct election of every constitutional authority C. Periodic elections without enforceable rights or institutional limits D. A constitutional right to referendum, initiative, recall and plebiscite

Answer: A.

- **A - Correct.** Articles 324-326 support electoral participation and Articles 75 and 164 link executive authority to legislative confidence.
- **B - Incorrect.** Several constitutional offices, including the President, are not directly elected by all voters.
- **C - Incorrect.** Electoral majorities remain bounded by rights, federalism and constitutional review.
- **D - Incorrect.** India did not adopt these as general devices of direct democracy.

Examiner trap: Democracy is broader than elections, but it does not imply that every office or decision is directly voted upon.

Q14. Ambedkar's warning about liberty, equality and fraternity supports which conclusion?

A. Political democracy makes social and economic democracy unnecessary B. The three ideals form an interdependent union and cannot be safely divorced C. Fraternity is legally enforceable in exactly the same way as Article 14 D. Equality requires suppression of every liberty claim

Answer: B.

- **A - Incorrect.** Political democracy becomes unstable when social and economic inequalities remain entrenched.
- **B - Correct.** The 'union of trinity' formulation rejects a hierarchy in which one ideal destroys the others.
- **C - Incorrect.** Fraternity has constitutional significance but no standalone remedy identical to a Fundamental Right.
- **D - Incorrect.** Constitutional equality and liberty are balanced, not mutually annihilating.

Examiner trap: The trinity is a relationship claim, not a ranking or enforceability equivalence.

Q15. Which statement follows most directly from the word 'Republic'?

A. India must use presidential government B. Every public office must be filled by direct election C. The head of State is non-hereditary and constitutional public status rejects inherited privilege D. India cannot have a parliamentary executive

Answer: C.

- **A - Incorrect.** Republicanism is compatible with parliamentary or presidential systems.
- **B - Incorrect.** The Indian President is indirectly elected and many offices are appointed.
- **C - Correct.** The core contrast is elected or otherwise non-hereditary constitutional office versus monarchical succession.
- **D - Incorrect.** India combines republican headship with parliamentary responsibility.

Examiner trap: Republic concerns hereditary status; it does not select the whole executive form.

Q16. Why are 'Democratic' and 'Republic' not synonyms?

A. Democracy concerns only courts, while republic concerns only legislatures B. Republic requires a written Constitution, while democracy does not C. Democracy excludes monarchy in every constitutional system D. Democracy concerns popular rule and accountability; republic concerns non-hereditary headship

Answer: D.

- **A - Incorrect.** Both are system-wide political concepts, not labels confined to one organ.
- **B - Incorrect.** Written form is not the defining distinction between the two terms.
- **C - Incorrect.** Constitutional monarchies can be democratic while retaining hereditary headship.
- **D - Correct.** Britain illustrates democracy with monarchy; India combines democracy with republican headship.

Examiner trap: Use the democratic-monarchy example to defeat the assumption that democracy automatically means republic.

Q17. Preambular justice comprises:

A. Social, economic and political justice B. Civil, criminal and administrative justice C. Natural, legal and corrective justice D. Procedural, substantive and restorative justice

Answer: A.

- **A - Correct.** These are the three exact limbs stated in the constitutional text.
- **B - Incorrect.** These are branches or fields of law, not the Preamble's formulation.
- **C - Incorrect.** These jurisprudential categories do not reproduce the enacted words.
- **D - Incorrect.** These analytical forms may be useful elsewhere but are not the textual triad.

Examiner trap: When the stem asks what the Preamble comprises, exact text defeats plausible jurisprudential vocabulary.

Q18. Which source association is correctly stated in the standard Preamble account?

A. Justice-French Revolution; fraternity-Russian Revolution B. Justice-Russian Revolution; liberty, equality and fraternity-French Revolution C. All four ideals-American Revolution D. All four ideals-Objectives Resolution alone, with no comparative influence

Answer: B.

- **A - Incorrect.** It reverses the standard source association.
- **B - Correct.** Justice is associated with the Russian Revolution of 1917; the other three with the French Revolution of 1789.
- **C - Incorrect.** The American constitutional tradition influenced preambular practice, not this four-ideal attribution.
- **D - Incorrect.** The Objectives Resolution is the direct Indian lineage, but standard accounts also identify these comparative inspirations.

Examiner trap: Keep direct constitutional lineage and conventional ideological source associations in separate boxes.

Q19. Which list reproduces every liberty expressly named in the Preamble?

A. Thought, expression, association, movement and residence B. Speech, assembly, association, movement and profession C. Thought, expression, belief, faith and worship D. Conscience, religion, culture, education and occupation

Answer: C.

- **A - Incorrect.** Association, movement and residence belong to Article 19 formulations, not the Preamble's liberty list.
- **B - Incorrect.** This largely paraphrases Article 19 freedoms and omits belief, faith and worship.
- **C - Correct.** These five nouns reproduce the Preambular text.
- **D - Incorrect.** This combines concepts from Articles 25 and 29-30 rather than the exact clause.

Examiner trap: UPSC often inserts a genuine Fundamental Right term into an otherwise correct Preamble list.

Q20. The statement 'liberty in the Preamble is absolute' is incorrect because:

A. The Preamble contains no liberty objective B. Only economic liberty is recognised C. Liberty belongs exclusively to non-citizens D. Constitutional liberty operates with lawful limits protecting rights, order and the common good

Answer: D.

- **A - Incorrect.** Liberty is one of the four express objectives.
- **B - Incorrect.** The named liberties concern thought, expression, belief, faith and worship, not a sole economic category.
- **C - Incorrect.** The Preamble states that these objectives are to be secured to all citizens.
- **D - Correct.** Freedom is essential to personality but is not licence to disregard constitutionally valid restrictions or others' rights.

Examiner trap: The safe distinction is liberty versus licence, not liberty versus regulation.

Q21. Equality of status and opportunity is best understood as:

A. Removal of privilege and enlargement of equal citizenship, including justified differential measures B. A guarantee that every person will receive identical outcomes C. A ban on all classifications by law D. A promise limited to voting rights

Answer: A.

- **A - Correct.** Constitutional equality combines non-arbitrariness with measures that can address disadvantage.
- **B - Incorrect.** The Preamble does not promise equality of outcome, and substantive equality may yield varied results.

- **C - Incorrect.** Reasonable classification and affirmative action are compatible with equality when constitutionally justified.
- **D - Incorrect.** Political equality is one dimension; status and opportunity reach social and economic life too.

Examiner trap: Identical treatment can be unequal in effect; 'same treatment' is not the complete constitutional formula.

Q22. Which statement about fraternity is correct?

- A. It concerns only territorial defence B. It is to be promoted among citizens and assures dignity plus unity and integrity
C. It was inserted wholly by the 42nd Amendment D. It has no connection with constitutional citizenship

Answer: B.

- **A - Incorrect.** Territorial integrity is one assurance, but fraternity also protects individual dignity and social cohesion.
- **B - Correct.** The text changes verb from securing justice-liberty-equality to promoting fraternity among all.
- **C - Incorrect.** Fraternity, dignity and unity were original; only 'integrity' was added in 1976.
- **D - Incorrect.** Common citizenship and civic duties are important constitutional means of cultivating fraternity.

Examiner trap: Remember both the different verb-promote-and the two assurances that follow it.

Q23. Which statement correctly distinguishes 'unity' and 'integrity' in the Preamble?

- A. Both words were added in 1976 B. Both words were omitted from the original text C. 'Unity' was original; 'integrity' was inserted by the 42nd Amendment D. 'Integrity' was original; 'unity' was inserted by the 44th Amendment

Answer: C.

- **A - Incorrect.** The amendment added only the second word of the present pair.
- **B - Incorrect.** The original fraternity clause already assured the unity of the Nation.
- **C - Correct.** The present phrase results from adding 'and integrity' in 1976.
- **D - Incorrect.** The 44th Amendment did not alter the Preamble.

Examiner trap: The close-option trap is to remember the added phrase but forget that 'unity' pre-dated it.

Q24. Which date-event set is correctly matched?

- A. 26 November 1949-commencement; 26 January 1950-adoption B. 24 January 1950-Objectives Resolution adopted; 26 January 1950-signing C. 13 December 1946-Preamble enacted; 22 January 1947-Constitution commenced D. 26 November 1949-adoption; 24 January 1950-signing; 26 January 1950-commencement

Answer: D.

- **A - Incorrect.** Adoption and commencement are reversed.
- **B - Incorrect.** The Objectives Resolution was adopted on 22 January 1947, while members signed the Constitution on 24 January 1950.
- **C - Incorrect.** Both events and dates are mismatched by several years.
- **D - Correct.** The three dates identify distinct stages in constitutional self-giving.

Examiner trap: Do not treat adoption, members' signing and commencement as interchangeable ceremonies.

Q25. Which scholar-description pair is correctly matched?

- A. N.A. Palkhivala-'identity card of the Constitution' B. K.M. Munshi-'procedure established by law' C. Ernest Barker-'basic structure doctrine' D. Thakur Das Bhargava-'constitutional tort'

Answer: A.

- **A - Correct.** The metaphor captures the Preamble's concise statement of constitutional identity.
- **B - Incorrect.** Munshi is associated here with the 'horoscope of our sovereign democratic republic', not Article 21's borrowed phrase.
- **C - Incorrect.** Barker described the Preamble as a key-note; he did not formulate India's basic-structure doctrine.

- **D - Incorrect.** Bhargava praised the Preamble as soul, key and jewel, not as a doctrine of public-law damages.

Examiner trap: Attribution questions use genuine constitutional vocabulary assigned to the wrong person.

Q26. What is the most precise account of *Berubari Union (1960)* on the Preamble?

A. It denied both interpretive relevance and constitutional membership B. It accepted the Preamble as an interpretive key but did not regard it as part of the Constitution C. It held the Preamble enforceable like Fundamental Rights D. It held that Article 368 could never amend the Preamble

Answer: B.

- **A - Incorrect.** The opinion expressly recognised the Preamble as a key to the minds of the makers.
- **B - Correct.** Its two propositions must be retained together to understand the later doctrinal shift.
- **C - Incorrect.** No standalone enforceability was created.
- **D - Incorrect.** The authoritative amendability holding came later in *Kesavananda Bharati*.

Examiner trap: Calling *Berubari* simply 'wrong' loses its continuing interpretive proposition.

Q27. How should *Kesavananda Bharati (1973)* be reconciled with *Berubari Union (1960)*?

A. It rejected every observation made in *Berubari* B. It agreed that the Preamble was not part but made it enforceable C. It displaced *Berubari* on membership while retaining the Preamble's interpretive relevance D. It removed the Preamble from the Constitution by amendment

Answer: C.

- **A - Incorrect.** *Berubari*'s interpretive-key insight remains useful.
- **B - Incorrect.** *Kesavananda* held the Preamble to be part and did not make it independently enforceable.
- **C - Correct.** The change concerns constitutional membership, while interpretive use is a line of continuity.
- **D - Incorrect.** The Court interpreted the Constitution; it did not amend or delete its Preamble.

Examiner trap: The examiner rewards a continuity-and-change reconciliation, not a crude reversal slogan.

Q28. Which combination states the present legal position correctly?

A. Not part; enforceable; independent source of power B. Part; enforceable; prohibition on every inconsistent policy C. Part; identical legal effect to every Article; unamendable D. Part; non-justiciable; neither independent source nor independent prohibition of power

Answer: D.

- **A - Incorrect.** Every limb conflicts with the post-*Kesavananda* position.
- **B - Incorrect.** Membership does not create a freestanding remedy or policy veto.
- **C - Incorrect.** Preambular text is amendable under Article 368 and does not operate identically to justiciable provisions.
- **D - Correct.** This keeps membership, enforceability and competence analytically separate.

Examiner trap: A correct option must satisfy all three axes; one accurate limb cannot rescue two false ones.

Q29. The Preamble may legitimately guide a court when:

A. An operative provision is ambiguous and constitutional purpose helps choose between plausible readings B. Parliament lacks legislative competence but the policy appears socially desirable C. A litigant seeks a remedy based only on the word 'fraternity' D. Clear constitutional language produces an inconvenient outcome

Answer: A.

- **A - Correct.** Purposive interpretation uses the Preamble to illuminate, not replace, operative text.
- **B - Incorrect.** Constitutional purpose cannot manufacture competence absent from the allocation of powers.
- **C - Incorrect.** Fraternity can shape interpretation but supplies no standalone cause of action.
- **D - Incorrect.** The Preamble is not authority to rewrite clear text.

Examiner trap: Interpretive aid operates within legal text; it is not a general judicial licence.

Q30. Which statement on amendability is correct?

A. The Preamble is absolutely unamendable because it precedes Article 1 B. Article 368 reaches the Preamble, but an amendment cannot destroy basic structure C. The Preamble may be amended by ordinary law D. Only the adoption date may be amended

Answer: B.

- **A - Incorrect.** *Kesavananda Bharati* held that the Preamble is part and amendable.
- **B - Correct.** Amendment power and the basic-structure limitation operate together.
- **C - Incorrect.** A constitutional amendment, not an ordinary legislative majority, is required.
- **D - Incorrect.** No such unique immunity or exclusive amendable field exists.

Examiner trap: Avoid both extremes: neither absolute unamendability nor unlimited amendment is the law.

Q31. Which is the only amendment that has altered the text of the Preamble?

A. The First Amendment, 1951 B. The Twenty-fourth Amendment, 1971 C. The Forty-second Amendment, 1976 D. The Forty-fourth Amendment, 1978

Answer: C.

- **A - Incorrect.** The First Amendment changed rights-related provisions but not the Preamble.
- **B - Incorrect.** The Twenty-fourth Amendment strengthened Article 368 terminology without rewriting the Preamble.
- **C - Correct.** It inserted Socialist, Secular and Integrity.
- **D - Incorrect.** The Forty-fourth Amendment reversed several Emergency-era changes but left the Preamble untouched.

Examiner trap: Emergency-era association often tempts candidates to assume the 44th Amendment deleted the 42nd's Preamble words.

Q32. What did the Supreme Court decide in *Dr Balram Singh v. Union of India* (25 November 2024)?

A. It struck down 'socialist' but retained 'secular' B. It held that socialism mandates nationalisation C. It left the validity of both insertions undecided D. It dismissed the challenge, upheld the words and held that socialism does not prescribe one economic model

Answer: D.

- **A - Incorrect.** Neither challenged word was struck down.
- **B - Incorrect.** The Court stressed policy choice, mixed-economy experience and private entrepreneurship.
- **C - Incorrect.** The petitions were dismissed and the constitutional position was expressly addressed.
- **D - Correct.** The judgment also treated secularism as equality-linked and reaffirmed that Article 368 extends to the Preamble.

Examiner trap: Current-law questions may invert the holding by presenting the petitioners' argument as the Court's conclusion.

PYQS AND ANSWER PRACTICE

Audited ownership and key discipline

- Direct routed objective PYQs: **1** - UPSC 2020 Prelims GS-I Q16.
- Direct owned Mains PYQs: **0** in the audited 2018-2026 routing ledgers.
- Questions on comparative secularism, constitutional morality, Fundamental Rights, Directive Principles and the full basic-structure doctrine remain with their owning topics and are not misrouted here.
- The repository does not hold a final official UPSC key for the retained objective item, so no answer letter is supplied.

Objective PYQ 1 - UPSC 2020 Prelims GS-I Q16

Question: The Preamble to the Constitution of India is

A. a part of the Constitution but has no legal effect B. not a part of the Constitution and has no legal effect either C. a part of the Constitution and has the same legal effect as any other part D. a part of the Constitution but has no legal effect independently of other parts

Answer withheld pending official UPSC key.

Concept control: *Kesavananda Bharati* (1973) and *LIC of India* (1995) establish membership. The Preamble is non-justiciable and neither independently confers nor prohibits power, yet it guides interpretation and basic-structure analysis. The nearest distinction is therefore between 'no legal effect' and 'no legal effect independently of other parts'; no answer letter is promoted without a final official key.

Six original Mains questions with complete model solutions

Original Q1 - 10 marks / 150 words

Question: The Preamble is part of the Constitution, yet it confers no power and bars none. Examine. Answer in 150 words.

Demand: Separate constitutional membership from enforceability and power-conferring effect.

Model answer: The apparent contradiction disappears when three questions are separated. First, membership: *Berubari Union* (1960) treated the Preamble as an interpretive key but not as part; *Kesavananda Bharati* (1973) displaced that exclusion, and *LIC of India* (1995) reaffirmed integral status.

Second, enforceability: the Preamble remains non-justiciable and creates no standalone cause of action. Third, competence: legislative power comes from provisions such as Articles 245-246 and the Seventh Schedule, not from Preambular ideals; nor does the Preamble independently prohibit legislation.

Its force is nevertheless real. It guides the interpretation of ambiguous provisions and helps identify basic features when an amendment is reviewed under Article 368.

Thus the Preamble is constitutional text with derivative legal force-an authoritative interpretive charter, but not an autonomous grant of power or remedy.

Original Q2 - 10 marks / 150 words

Question: Explain the constitutional significance of enacting the Preamble after the rest of the Constitution. Answer in 150 words.

Demand: Move from chronology to interpretive and institutional consequence.

Model answer: The Constituent Assembly deliberately considered the Preamble after the substantive Constitution so that the declaration would conform to the text already accepted. This completed a chain beginning with Nehru's Objectives Resolution, moved on 13 December 1946 and adopted on 22 January 1947, and ending in constitutional adoption on 26 November 1949.

The sequence has two consequences. First, the Preamble is not a detached aspiration; it is a retrospective compression of the enacted distribution of authority, institutions and values. Second, that fit strengthens its interpretive reliability. *Berubari Union* (1960) could call it a key to the minds of the makers, while *Kesavananda Bharati* (1973) could treat its basic elements as part of constitutional identity.

The sequence does not make the Preamble independently enforceable. It converts constituent purpose into authoritative evidence for interpreting, but not replacing, operative provisions.

Original Q3 - 15 marks / 250 words

Question: Article 368 reaches the Preamble, but the basic features declared in the Preamble do not yield to Article 368. Critically examine. Answer in 250 words.

Demand: Defend both halves, state the judicial objection and give a calibrated verdict.

Model answer: The statement captures the distinction between constitutional amendment and constitutional destruction.

Article 368 reaches the Preamble because *Kesavananda Bharati* (1973) held the Preamble to be part of the Constitution. Parliament consequently altered its text through the 42nd Amendment, 1976, inserting Socialist, Secular and Integrity. *Dr Balram Singh* (2024) reaffirmed that the adoption date does not freeze the Preamble against amendment and dismissed the challenge to Socialist and Secular.

Yet the amending power is limited. *Kesavananda* held that Parliament cannot damage the Constitution's basic structure, whose identity is illuminated by Preambular commitments such as sovereignty, democracy, republicanism, secularism, liberty, equality and dignity. *Minerva Mills* (1980) reaffirmed limited amending power and constitutional balance; *S.R. Bommai* (1994) applied secularism as a basic feature.

The criticism is institutional: the text does not enumerate every basic feature, so judicial identification may appear counter-majoritarian. The reply is structural. If an amendment majority could abolish the democratic or secular identity from which its authority arises, Article 368 would become a power to replace rather than amend the Constitution.

Therefore wording may change and commitments may be clarified, but the Preamble cannot be used to authorise the legal destruction of constitutional identity.

Original Q4 - 15 marks / 250 words

Question: The word Socialist in the Preamble fixes ends, not means. Examine in the light of India's constitutional and economic experience. Answer in 250 words.

Demand: Distinguish the welfare floor from economic instruments and address the post-1991 objection.

Model answer: Indian socialism is democratic rather than statist. Its ends were already implicit before 1976 in Directive Principles such as Articles 38 and 39: a welfare-oriented social order, reduced inequality and prevention of excessive concentration of resources. The 42nd Amendment made the commitment express.

The means were never constitutionally frozen. India's mixed economy combined public action with private property and enterprise. *D.S. Nakara* (1982) described Indian socialism through a Gandhian-Marxian blend, while *G.B. Pant University* (2000) linked it to ending poverty, ignorance, disease and inequality of opportunity. Liberalisation in 1991 changed policy instruments and reduced the dominance of State ownership, but did not erase constitutional welfare goals.

The present position is clearest in *Dr Balram Singh* (2024): neither the Constitution nor the Preamble mandates one economic model, and Socialist does not prohibit private entrepreneurship. *Property Owners Association* (2024) similarly recognised democratic choice in economic governance.

The proposition, however, is not a licence for welfare abandonment. Policy freedom remains bounded by equality, dignity and the Directive Principles. Socialist therefore fixes a constitutional floor of welfare and opportunity while leaving nationalisation, regulation, markets and public provision to democratic choice.

Original Q5 - 20 marks / 250 words

Question: The Preamble is an interpretive charter rather than an enforceable clause, yet it remains a yardstick for constitutional government. Critically analyse. Answer in 250 words.

Demand: Explain indirect legal force, normative evaluation, objections and limits.

Model answer: The Preamble combines limited legal operation with wide constitutional significance.

Its legal status is settled by a sequence. *Berubari Union* (1960) accepted it as a key to the makers' minds but did not regard it as part. *Kesavananda Bharati* (1973) held it part and used its basic elements in limiting Article 368; *LIC of India* (1995) reaffirmed integral status. Membership did not create independent enforceability: the Preamble neither confers nor prohibits legislative power and supplies no standalone cause of action.

Its force works through two routes. Where operative text is ambiguous, it supplies constitutional purpose. Where an amendment threatens constitutional identity, its values help identify basic structure. It cannot override clear text or replace rights, competence and remedy provisions.

It is also a yardstick because it states the Republic's own standards—justice, liberty, equality, fraternity, dignity and democratic-secular identity. Laws and institutions can therefore be evaluated against constitutional promises rather than external political preference.

Two cautions remain. Persistent inequality shows the gap between declaration and delivery; selective invocation can turn broad ideals into judicial subjectivity. The answer is disciplined use: every Preambular claim must be linked to text, structure and precedent.

Thus its non-justiciability is not irrelevance. The Preamble is an authoritative compass whose legal effect is mediated through the Constitution it introduces.

Original Q6 - 20 marks / 250 words

Question: Indian secularism is equality-linked constitutional engagement, not hostility to religion or an absolute wall of separation. Critically examine. Answer in 250 words.

Demand: Define the Indian model, prove it from text and doctrine, and identify the risk in State engagement.

Model answer: Indian secularism protects both freedom of conscience and equal citizenship. Articles 25-28 secure religious liberty subject to public order, morality, health and other Fundamental Rights; Articles 14-16 prohibit unequal citizenship; Articles 29-30 protect cultural and educational interests. Article 25(2) permits regulation of secular activities and social welfare and reform. The design therefore differs from both a theocracy and official hostility to faith.

Doctrine reinforces this synthesis. *Kesavananda Bharati* (1973) and *S.R. Bommai* (1994) identify secularism as a basic feature. *Dr Balram Singh* (2024) upheld the Preambular word, described secularism as a facet of equality and stated that the State neither supports a religion nor penalises the profession and practice of faith.

The model is often called principled distance: State action may engage religion, but only for constitutionally justified and non-discriminatory purposes. This accommodates India's social-reform history and minority protections better than an absolute separation formula.

Its danger is discretionary selectivity. Governments may regulate one community unequally or convert accommodation into political patronage. Equality is therefore not merely a justification for engagement; it is its controlling limit, reinforced by religious freedom and judicial review.

Indian secularism is thus neither anti-religious nor boundaryless intervention. It is rights-bound engagement aimed at equal citizenship in a religiously diverse Republic.